PRIVACY POLICY

Privacy

Avondale College promotes and protects the privacy of all individuals associated with the school; that are its students, staff, parents, guardians, whānau, and others.

We follow the key principles of the Privacy Act 2020, which describes how we may collect, use, store, and dispose of personal information.

The Office of the Privacy Commissioner administers the Act and encourages best practice. Our privacy officer deals with requests for personal information and, if required, liaises with the Privacy Commissioner in any investigations. Our privacy officer is Deputy Principal in charge of Human Resources, who can be contacted through the School Board Secretary.

Avondale College has a Health Clinic and Guidance Department. Staff within these areas will follow the legal requirements and responsibilities around student privacy as required by their professional obligations.

Our Privacy Guidelines inform:

- how we collect, store, and dispose of information.
- what information we collect.
- how we use and disclose information about individuals, including official information requests.
- how individuals may access information relating to them that is held by Avondale College.
- how to manage the rights of parents regarding information about their child.

It is important that staff understand Avondale College's Privacy Guidelines, especially in relation to personal information and reporting breaches. See information from the Privacy Commissioner about reporting privacy breaches.

Personal Information

The school collects personal information (information about an identifiable individual) to:

1. provide a high standard of teaching and learning.

2. celebrate achievement and recognise diversity.

3. record and maintain:
    - student records of academic progress, through, for example, portfolios, digital learning stories, etc
    - accounts
    - provide a safe learning environment

4. Provide:
    - library and information technology services.
    - learning behaviour programmes.
    - accurate information to other education providers to ensure the proper and safe transfer of students.

5. report/disclose information to government bodies or other agencies for the purposes of funding/support or to meet contractual/legislative obligations, e.g. Ministry of Education, Work and Income, Oranga Tamariki – Ministry for Children, district health boards, Ministry of Health, etc

6. produce communications and maintain Avondale College's website, school notices, and management systems.

To do this, Avondale College collects and holds information such as:

- **Personal** – full name, date of birth, gender, names and ages of siblings, contact details, ethnicity (statistical), citizenship/residency status/eligibility criteria, iwi, first language.

- **Health** – doctor's name, proof of immunisation, dietary requirements, medical conditions/health matters/disabilities about which Avondale College should be aware.

- **Education** – information relevant to the student's learning, such as the student's interests, any aspect of behaviour, performance in class, test results, electronic images including photographs, videos and audio recordings (for teaching and learning and reporting purposes).

- **Caregivers** – parents, legal guardians, caregivers (including homestays) contact details (address, phone, email), relationship to the student, occupation (optional), and day-to-day care arrangements.

- **Additional information** — information required for a specific activity to ensure the school provides appropriate care and teaching to a student, for example information about their dietary, learning or cultural needs.

Avondale College may require certain documentation to verify the information above (e.g. passport, birth certificate, immunisation certificate etc.)

Sharing student information

Student information is shared within the school (for example, between teachers and/or the Executive) for the purposes set out in this policy.

There is some information about a student that the School is required to share with a student's parents/guardians, for example, a student's performance at school.

There is also information which, although a parent or guardian may be entitled to request the information, the school may withhold the information in certain circumstances for example, if the student did not want that information shared. The School aims to obtain the student concerned's consent to share information. However, there may be situations where it is not appropriate to inform the student, such as a police investigation, or the potential of further harm to an individual's safety or wellbeing. In all situations, we only share information that is accurate, up-to-date, and relevant to the safety and wellbeing of the student.

Photographs or recordings of students

From time to time the school takes photographs of students to record activities within the school for the students' learning journals, for the school newsletter, for Taikaka, for the school website and for other school publications. It is School protocol that any photographs for publication are either positive depictions of the children/young people and/or the photographs are taken in such a way to avoid identification. If a parent/guardian or student has concerns about a photograph published by the school, the Privacy Officer may be contacted to express your concerns and to consider removing the publication.

Closed Circuit Television (CCTV) cameras are used in the school for security and health and safety purposes only. Where CCTV cameras are in place, the School displays notices of the presence of cameras. CCTV Footage can be accessed only by the School Board, members of the school's Executive, and approved school staff. The footage is generally retained for up to 60 days, unless there is a related purpose to retain it. It is then retained until it is no longer required.

The classrooms, learning spaces, offices, health clinic and assemblies are considered private spaces. Avondale College does not permit the taking of photographs, videos or audio recordings of students or members of staff in these private spaces unless expressly permitted by the teacher or member of staff, and any individual involved (i.e. the students or teachers, etc.).

Avondale College follows guidelines to protect students' privacy and safety at the school when we publish or share student information, such as photographs or CCTV footage. We encourage our school community to also consider privacy issues when sharing photos and videos taken at Avondale College events. If parents or guardians want to share photos/videos on social media, they should consider the following:

- Show the images to your children and discuss them before posting them on social media. This will help your children understand that they should always think about what goes out to the public on the internet.
- If the images have pictures of other students, think about editing to remove them.
- Make sure that other students are not named in any online posts.
- Whether any copyright issues apply, such as at a school play (which forbid photos or videos to be taken). Where this is the case, Avondale College makes this known.

Parents should remember that posting photos of other people can be harmful, and can amount to harassment. They should take care to ensure images and posts are fair to other people.

Students are also expected to consider privacy and cybersafety issues when sharing photos and using social media.

Privacy Guidelines

The Privacy Act 2020 is primarily concerned with good information handling practices, and is made up of 13 information privacy principles. They can be found in section 22 of the Privacy Act 2020 on the legislation website (www.legislation.govt.nz).

The following guidelines apply these principles.

Guidelines for collecting, using, storing, and disposing of personal information

Purpose, source, and manner of collecting personal information

- When we collect personal information about an individual, we make known the purpose of collecting it, who will have access to it, and whether it is compulsory or optional information. We advise that individuals have the right to request access to, and correction of, their personal information.

- We only collect personal information:
  - for purposes connected with the function of the school, and only when it is necessary to have this information.
  - directly from the person concerned, or, if the person concerned is a student we also collect information from their parent or guardian, unless it is publicly available from elsewhere, or the person's interests are not prejudiced when we collect the information from elsewhere.
  - in a transparent manner.
  - in a lawful and fair manner, and avoid intruding on people's privacy as much as possible, especially vulnerable children or young people.

Storage, access, correction, and accuracy of personal information

- We have reasonable safeguards in place to protect personal information from loss, unauthorised access, use, or disclosure. We may require volunteers and third-party contractors to sign confidentiality agreements.
- If an individual wants access to information we hold about them, we provide it. Individuals may request correction of this information or, when not corrected (for example if the record is unable to be corrected), a record of the request to correct the information is attached to the record.
- We take reasonable steps to make sure personal information is correct, up to date, relevant and not misleading.

Holding, disclosing, and disposing of personal information

- We retain information in line with the Ministry of Education's School Records - Retention and Disposal Schedule. We only keep information for as long as it is needed, and for the purposes for which it was obtained. When a student moves to a new school and their records are requested, we forward the relevant information that we hold.

- If information is no longer needed, and the school is no longer required to retain that information, we securely dispose of that information.
- Information is only used for the purposes for which it was obtained except in certain circumstances (for example, for statistical and analytical purposes where the person's identity is not disclosed.
- We safeguard students' information and we do not release that information to third parties unless we are allowed, or required to release the information by law. This covers disclosure to persons other than those able to legitimately access material about their own children for example, law enforcement.
- As a general rule, information about any person is not given to a third party without the person's knowledge, unless:

    - the information is already publicly available.
    - it is being passed on in connection with a purpose for which it was obtained, for example, to the student's new school.
    - the right to privacy is over-ridden by other legislation or law, including a court order.
    - it is necessary for the protection of individual or public health and safety.
    - Avondale College only discloses personal information outside New Zealand if a parent authorises the disclosure, and understands that we cannot guarantee the security of the information once it is sent outside New Zealand (for example, sending a report to an international student's parents).

Unique identifiers

Where necessary, and when it's useful for administrative purposes, we use the National Student Number (NSN) or an Avondale College student ID number. Except for the NSN, the school doesn't use the same ID number for a student that another agency also uses for them.

For most purposes, the best guide is to use good sense and to treat personal information with great respect. When in doubt, seek advice from the school's privacy officer or the Office of the Privacy Commissioner.

Signed: _____ **Date:** 26 July 2024

Mr David Erson
Presiding Member
The Avondale College School Board